

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.66877 of 2025

Muhammad Munir

Versus

**Province of the Punjab, through Chief Secretary Punjab, Civil
Secretariat, Lahore & others**

J U D G M E N T

Date of hearing:	06.05.2026.
Petitioner by:	M/s. Kashif Ali Chaudhry and Baby Tabassum, Advocate.
Respondents by:	Mr. Muhammad Saad Bin Ghazi, Assistant Advocate General. Mr. Ubaid-Ur-Rehman, Advocate for respondents No.4 to 6.

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through this Constitutional Petition, the petitioner has assailed orders dated 02.07.2021 and 24.09.2025, passed by respondent No.3, as well as order dated 09.01.2023 passed by respondent No.4, whereby his requests/representations seeking up-gradation of his post from BS-07 to BS-14 were declined. The petitioner seeks such relief on the strength of various notifications issued by the Local Government & Community Development Department, Government of the Punjab, and on the basis of judgments rendered by this Court and the Hon'ble Supreme Court of Pakistan in respect of similarly placed employees.

2. Learned counsel for the petitioner contends that the petitioner was appointed as Goods Exit Clerk (BS-05) and subsequently designated as Saddar Moharrar/Head Moharrar (BS-07), and that his duties, functions, and service profile are akin to those of ministerial cadre employees, particularly Senior Clerks and Head Clerks. He argues that the Finance Department had

upgraded ministerial posts vide various notifications and extended the benefit of up-gradation to similarly placed employees, however, the petitioner has been arbitrarily deprived of the same benefit despite being similarly placed. He contends that denial of up-gradation to the petitioner amounts to discrimination and violation of Articles 4 and 25 of the Constitution of the Islamic Republic of Pakistan, 1973 (“**the Constitution**”). He further submits that earlier judgments of this Court, duly upheld up to the Hon’ble Supreme Court, have settled the principle that similarly placed employees cannot be discriminated against in matters of service benefits, and therefore, the petitioner is also entitled to up-gradation on the principle of parity.

3. Conversely, learned Assistant Advocate General, assisted by learned counsel for the respondents, opposes the petition and submits that the matter pertains to service structure, cadre classification, and pay scales, which fall within the exclusive domain of the executive authorities, particularly the Finance Department. He contends that up-gradation is neither a vested right nor can it be claimed as a matter of course, but is dependent upon policy decision, restructuring of departments, and exigencies of service. He argues that the petitioner’s post is not identical to the posts specifically upgraded under the relevant notifications, and that only those posts having specific nomenclature were extended the benefit of up-gradation. He has placed reliance upon the judgment reported as Amanullah Khan v. Hospital Director, KTH (MTI), Peshawar and other (2023 SCMR 418).

4. Arguments heard and record perused.

5. It is a well-settled proposition of service jurisprudence that matters concerning the creation and abolition of posts, fixation and revision of pay scales, restructuring of service cadres, and up-gradation of posts are matters of executive policy that lie primarily within the domain of the competent executive authorities. These are decisions that involve considerations of financial sustainability,

departmental exigencies, service structure, and public administration, all of which are preeminently within the expertise and province of the executive branch of government.

6. The constitutional jurisdiction of this Court under Article 199 of the Constitution is not ordinarily invocable to substitute the judicial opinion for executive wisdom in such administrative and financial matters. Interference in constitutional jurisdiction is warranted only when it is demonstrated that the impugned executive action suffers from one or more of the following: (i) *mala fide* exercise of authority; (ii) manifest arbitrariness; (iii) patent illegality or ultra vires action; or (iv) a direct violation of fundamental rights guaranteed under the Constitution. In the absence of any such infirmity, the constitutional court must exercise restraint and decline to interfere in purely executive or administrative determinations.

7. The Hon'ble Supreme Court of Pakistan has consistently held, and it is now an uncontroverted principle of service law, that up-gradation attaches to the post and not to the individual incumbent. An employee cannot acquire a vested right to have his post upgraded solely because another post, even one with comparable functions, has been upgraded through a policy decision. The right to up-gradation must be traceable to an express policy decision, cadre restructuring duly notified by the competent authority, or a statutory entitlement. A subjective sense of functional equivalence, unaccompanied by formal recognition by the competent authority, is legally insufficient to ground a claim for up-gradation.

8. Turning to the facts of the instant case, the petitioner sought up-gradation of his post, namely Moharrar/Head Moharrar (BS-07), primarily on the strength of notifications dated 21.01.2016 and 18.01.2019 issued by the Finance Department and adopted by the Local Government & Community Development Department ("LG&CD Department"). The record reveals that the Finance

Department, Government of the Punjab, vide notification dated 10.09.2007, upgraded the posts of Junior Clerk from BS-05 to BS-07, Senior Clerk from BS-07 to BS-09, and Assistant/Head Clerk from BS-11 to BS-14. Thereafter, the LG&CD Department vide letter dated 19.09.2007 adopted the said facility of up-gradation mutatis mutandis for the employees of the erstwhile Local Councils with effect from 01.07.2007. Subsequently, the Finance Department, vide clarification dated 02.02.2008, categorically advised that the aforesaid notification was applicable only to posts bearing the specific nomenclature of Junior Clerk, Senior Clerk, and Assistant/Head Clerk working in BS-05, BS-07, and BS-11 respectively, and that equivalent posts carrying different nomenclature were not covered within the ambit of the said notification.

9. The record further shows that the Finance Department vide notification dated 04.01.2016 again upgraded the posts of Junior Clerk, Senior Clerk, Assistant/Head Clerk, and Superintendent with effect from 01.01.2016, which notification was likewise adopted mutatis mutandis by the LG&CD Department for employees of the Local Governments. Thereafter, vide notification dated 18.01.2019, certain additional posts were upgraded for the benefit of the incumbents; however, the said notification specifically clarified that the upgraded posts had no relevance to the posts of Junior Clerk, Senior Clerk, and Superintendent already governed by earlier notifications. The competent authorities, while deciding the petitioner's representations, consistently observed that the post of Moharrar/Head Moharrar held by the petitioner neither formed part of the ministerial cadre specifically identified in the relevant notifications nor was expressly mentioned therein. The petitioner has been unable to point out any notification, policy decision, statutory rule, or departmental order whereby the post of Moharrar/Head Moharrar was ever declared equivalent to the posts of Junior Clerk, Senior Clerk, Assistant/Head Clerk, or

Superintendent for purposes of pay scale up-gradation. This Court finds that the petitioner has failed to establish, through any cogent, documentary, or otherwise legally reliable material, that his post is identical in all material particulars to the posts specifically upgraded under the notifications relied upon. Mere similarity in certain day-to-day functions or discharge of analogous duties is not sufficient, in law, to establish legal equivalence for purposes of pay scale up-gradation. Functional resemblance cannot override the formal service structure, cadre classification, and policy framework determined by the competent authorities.

10. For a valid claim of equal treatment in matters of service benefits under Article 25 of the Constitution, the petitioner was required to demonstrate parity across all foundational service parameters, including: (i) service structure and cadre classification; (ii) mode of recruitment and eligibility criteria; (iii) promotional avenues and career progression; (iv) statutory framework and service rules governing the respective posts; and (v) formal departmental recognition by the competent authority that the posts form part of the same or equivalent cadre. The petitioner has failed to satisfy any of these essential requirements from the available record. The constitutional guarantee of equal treatment under Article 25 of the Constitution operates within and between classes of persons and posts that are substantively and legally equivalent. The guarantee does not extend to posts that differ in nomenclature, cadre, statutory framework, or service structure merely because they perform certain overlapping functions. Functional overlap alone does not create legal equivalence. To hold otherwise would effectively compel the executive to upgrade every post whose duties bear resemblance to an upgraded post, a proposition that has no basis in the law of service and would render executive policy-making in matters of service structure unworkable.

11. It is further manifest from the record that the competent authorities, while issuing the relevant up-gradation notifications,

consciously and deliberately confined the benefit of up-gradation to posts bearing specific nomenclature and forming part of a defined ministerial cadre. The policy decision was not one of general application to all posts performing similar functions; rather, it was a structured and circumscribed decision directed at identified posts within a recognized cadre framework. Posts carrying different designations, even if their incumbents discharge analogous duties, were not automatically or constructively included within the ambit of such policy decisions.

12. The respondents have maintained this distinction throughout the proceedings, and the petitioner has failed to rebut it through any legally tenable material. In particular, no material has been produced to show that the petitioner's post was ever: (i) recognized by the competent authority as forming part of the ministerial cadre that benefited from up-gradation; (ii) treated as equivalent to the upgraded posts in any formal departmental order or notification; or (iii) the subject of any recommendation or approval by the Finance Department for inclusion within the upgraded category. In the absence of such material, the denial of up-gradation cannot be characterized as arbitrary or discriminatory.

13. The reliance placed by the petitioner upon earlier judgments of this Court and the Hon'ble Supreme Court of Pakistan is, upon careful examination, misconceived. A thorough examination of those precedents reveals that relief was granted in the peculiar factual and legal circumstances of those cases where complete parity and equivalence between the concerned posts had been affirmatively and conclusively established on the basis of statutory rules, service structure, and formal departmental recognition.

14. Judgments of superior Courts rendered on specific facts cannot be mechanically applied, or invoked as precedents of universal application, in subsequent cases where the foundational factual and legal matrix is materially different. Every claim relating to service benefits and up-gradation must be examined

within its own distinct factual and statutory context. To extend a judgment beyond its factual foundation is to misapply the ratio decidendi and to give it a reach far beyond what the court intended. No such mechanical application of precedent is permissible in the present case, where the petitioner has failed to establish the essential factual parity upon which those earlier judgments were premised.

15. This Court has also examined the record to ascertain whether the denial of up-gradation to the petitioner is tainted by *mala fide*, hostile discrimination, or any manifest arbitrariness on the part of the respondent authorities. No such infirmity has been demonstrated. The orders impugned in this petition reflect a consistent application of the relevant policy framework to the petitioner's case. There is nothing on the record to suggest that similarly placed employees, that is, employees whose posts have been formally recognized as forming part of the ministerial cadre, have been treated differently from the petitioner. The comparison sought to be drawn by the petitioner is between his post and posts that are not legally equivalent, hence argument of equal treatment is unsustainable in this case.

16. The petitioner has not established that his post is legally and structurally equivalent to the posts upgraded under the relevant notifications. No *mala fide*, hostile discrimination, or manifest arbitrariness has been demonstrated in the impugned orders. Up-gradation does not constitute a vested right enforceable in the absence of a formal policy decision, cadre restructuring, or approval by the competent authority; and the precedents relied upon by the petitioner are factually distinguishable and cannot be mechanically applied to the present case. For the foregoing reasons, this Court is of the considered view that the petitioner has failed to make out a case warranting interference by this Court in the exercise of its constitutional jurisdiction under Article 199 of the Constitution.

17. Consequently, the instant Constitutional Petition, being devoid of merit, is hereby **dismissed**. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

Sultan